

as it relates to alleged dangerous conditions on the City sidewalks or streets,” which included complaints or requests for service received from phone calls and the City’s website and web-based application and observations by City Public Works crewmembers in the field. (*Id.*)

That said, the Court also notes that the declaration in *Sargenti* also stated that he “asphalt patch in question also differs in the manner in which it was constructed from how the City Public Works generally performs driveway apron asphalt patching” and that, because “the subject asphalt patch is on a driveway that provides ingress and egress to the parking lot” of a convention center managed and operated by a third party, “the City would have no reason to perform a subject asphalt patch.” (*Id.*) Here, the Defendant has not adduced any evidence to show that, as a matter of law, its employees or agents were not responsible for creating the street condition at or near Arnold Drive and Gloucester Lane.

The Defendant argues in reply that it has met its burden that it did not create the condition “by showing that Plaintiff has no evidence to prove a required fact.” (Reply at 5:3-4.) This argument is without reference to the Separate Statement, however, which does not include a single undisputed material fact regarding creation of the street condition at issue.

Under well-established summary judgment standards, a plaintiff’s burden to demonstrate—with evidence—a triable issue of material fact is only triggered once the moving party shows “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) Here, the City of Martinez has produced no evidence to negate plaintiff’s theory that its agents or employees created the dangerous street condition.

Furthermore, the Court also notes that the City of Martinez filed a Cross-Complaint against MCK Services, Inc. for (1) equitable indemnity, (2) contractual indemnification, (3) contribution, (4) comparative negligence, and (5) declaratory relief. That Cross-Complaint alleges that “on June 13, 2023, [the City of Martinez] entered into a Construction Project Agreement with MCK Services, Inc. for a Pavement Rehabilitation Project Agreement.” (Cross-Complaint at ¶ 16.) The Cross-Complaint further alleges that “[t]he plan includes pavement and striping plans for the street and corner Plaintiff alleges the incident occurred (Gloucester Lane and Arnold Drive).” (*Id.* at ¶ 18.) There is a strong implication that the City’s agents are responsible for the paving of the area where Plaintiff’s accident occurred.

Because the Defendant has not negated all theories of liability alleged in Plaintiff’s complaint, summary judgment is inappropriate. (See, e.g., *Jameson v. Desta* (2013) 215 Cal.App.4th 1144, 1165 [summary adjudication reversed where the defendant failed to address theory of liability alleged in complaint]; *Lopez v. Superior Court* (1996) 45 Cal.App.4th 705, 717 [reversing summary judgment where the defendant did not show it was entitled to judgment with respect to all theories of liability].)

Objections to Evidence

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ. (See CCP § 437c(q).)

Plaintiffs’ Objections to Defendant’s Evidence:

Objection No. 1: Overruled.

Objection No. 2: Overruled.

Objection No. 3: Overruled.

18. 9:00 AM CASE NUMBER: C25-00779

CASE NAME: PAWAN GARG VS. BMW OF NORTH AMERICA, LLC, A DELAWARE LIMITED LIABILITY COMPANY

*HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH 02/21/26 ORDER
FILED BY: BMW OF NORTH AMERICA, LLC, A DELAWARE LIMITED LIABILITY COMPANY

TENTATIVE RULING:

Introduction

Defendant BMW of North America Inc.'s ("Defendant" or "BMW") Motion to Compel Compliance with the Court's Prior Order and for Sanctions against Plaintiff Pawan K. Greg ("Plaintiff") is **granted**.

Background

On February 24, 2026, the Court issued an Order directing Plaintiff Pawan K. Garg ("Plaintiff") to appear for her deposition no later than thirty (30) days from the date of that order. The Court specified that the deposition was to commence no earlier than 9:00 a.m., was to last no more than six hours per day, and was to continue from day to day (excluding Court holidays and weekends) until completed. The February 24, 2026 Order further warned that failure to comply could result in terminating sanctions and contempt proceedings, and ordered Plaintiff and her counsel to pay monetary sanctions in the amount of \$2,280.00 within ten (10) days of the hearing date.

Plaintiff failed to appear for her deposition as ordered and has failed to pay the \$2,280.00 sanctions. Defendant was consequently compelled to file the instant motion to compel compliance, seeking enforcement of the Court's prior order and additional sanctions for Plaintiff's continued noncompliance.

Analysis

A. Legal Standards Governing Discovery and Sanctions

Civil discovery in California is governed by the Civil Discovery Act. (See Code Civ. Proc., §§ 2016.010–2036.050.) The Act affords litigants broad rights to obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402.)

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.020, subd. (a).) In exercising its discretion regarding discovery motions, the trial court relies upon the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. (*Glenfed Dev. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1119.)

The fundamental principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v. Superior Court* (1961) 56 Cal.2d 355, 376, remains controlling: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." (*Chronicle Pub. Co. v. Superior Court* (1960) 54 Cal.2d 548, 561.) As the *Chronicle* court

noted, citing *United States v. Procter & Gamble Co.* (1958) 356 U.S. 677, 682, discovery serves to make a trial "less a game of blind man's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent." *Chronicle Pub. Co. v. Superior Court*, *supra*, 54 Cal.2d at p. 572.)

B. Plaintiff's Continued Misuse of the Discovery Process

Code of Civil Procedure section 2023.010, subdivisions (d), (e), (f), (h), and (i), identifies multiple forms of discovery misuse, including: failing to respond or submit to an authorized method of discovery; making unmeritorious objections to discovery without substantial justification; making evasive responses to discovery; and unsuccessfully making or opposing motions to compel or limit discovery without substantial justification. Section 2023.030, subdivision (a), provides that the Court may impose monetary sanctions ordering that any party engaging in such misuse, or the attorney advising that conduct, or both, pay the reasonable expenses, including attorney's fees, incurred by any party as a result of that conduct.

Here, Plaintiff has failed to appear for her deposition despite the Court's clear February 24, 2026 Order requiring her attendance. The declaration submitted by Plaintiff's counsel offers no substantial justification for this failure. That the handling attorney no longer works for Plaintiff's counsel's firm does not excuse the noncompliance; the firm remains responsible for ensuring compliance with Court orders, and numerous other attorneys remain available to Plaintiff's counsel of record to ensure adherence to discovery obligations. This neglect by Plaintiff's counsel is inexcusable.

A plaintiff cannot simultaneously maintain an action and refuse to participate in fundamental discovery. Plaintiff's failure to appear constitutes a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.010, subdivision (d). Accordingly, Defendant is entitled to the sanctions originally ordered on February 24, 2026 (\$2,280.00), as well as additional sanctions incurred in prosecuting this motion to compel compliance (\$1,660.00).

The Court finds that Plaintiff's refusal to participate in discovery constitutes a misuse of the discovery process. The imposition of sanctions is necessary both to compensate Defendant for the expenses incurred due to Plaintiff's noncompliance and to deter future violations. The Court expects strict compliance with this Order.

Conclusion

1. Defendant's Motion Granted: Defendant BMW of North America Inc.'s Motion to Compel Compliance with the Court's Prior Order and for Sanctions is **granted** in its entirety.
2. Deposition Compliance: Plaintiff Pawan K. Garg shall appear for her deposition at a date and time noticed by Defendant no later than thirty (30) calendar days from the date of this Order. The deposition shall commence no earlier than 9:00 a.m. each day, shall last no more than six hours per day, and shall continue from day to day (excluding Court holidays and weekends) until completed. The parties may stipulate to extend these deadlines.
3. Monetary Sanctions: Plaintiff Pawan K. Garg and her counsel of record, jointly and severally, shall pay total monetary sanctions in the amount of \$3,940.00, allocated as follows: (a) \$2,280.00 pursuant to the Court's February 24, 2026 Order; and (b) \$1,660.00 for the costs incurred in bringing this motion.
4. These sanctions shall be paid to Defendant BMW of North America Inc. no later than ten (10) calendar days from the date of notice of entry of this Order by either Plaintiff or her Counsel,

as they are imposed on both.

5. Second Admonition of Terminating Sanctions: Plaintiff and her counsel are hereby notified, again, that failure to comply with this Order, including failure to appear for deposition as scheduled or failure to timely pay the sanctions imposed, may result in the imposition of terminating sanctions pursuant to Code of Civil Procedure section 2023.030, subdivision (b), and may subject Plaintiff and/or her counsel to contempt proceedings.
6. Preparation of Order: Defendant BMW of North America Inc. shall prepare and electronically file a proposed order conforming to this ruling, attaching a copy of this ruling, no later than five (5) court days from the date of this hearing.

19. 9:00 AM CASE NUMBER: C25-00988
CASE NAME: BRITTANY HOPPER VS. CITY OF ANTIOCH
HEARING ON SUMMARY MOTION FILED BY DEFENDANT CITY OF ANTIOCH
FILED BY: CITY OF ANTIOCH
TENTATIVE RULING:

Defendant the City of Antioch's motion for summary judgment and summary adjudication is **denied**.

Plaintiff Brittany Hopper was injured at the Antioch Water Park on May 27, 2024, when she slid down the crystal slide into the pool and her right knee hit a rock at the bottom of the pool. (FAC ¶¶ 5, 12, 13.) Plaintiff brought one cause of action for dangerous condition of public property.

Antioch moves for summary judgment or in the alternative, summary adjudication as to the following issues: (1) there is no dangerous condition, (2) the City did not have actual or constructive notice and (3) no causation. Although Antioch is seeking summary adjudication in the alternative, if the Court grants summary adjudication on any one of these issues it would result in granting summary judgment. Thus, the analysis of the three summary adjudication issues is the same as the one for summary judgment.

Facts

Defendant's motion is based on the deposition of Plaintiff and the declaration of Bree Pires, the City's Recreation Supervisor from January 2021 to 2026.

The undisputed facts show that prior to the incident, Plaintiff had ridden on the crystal water slide about 10 to 20 times and never experienced any issues. (Undisputed Facts 1-3.) Plaintiff was unaware of anyone being injured on the slide and had permitted her daughter to use the slide, thinking it was safe. (Undisputed Facts 4-6.) Plaintiff is not aware of anyone employed by the water park being on notice of any objects in the pool before the incident. (Undisputed Fact 25.)

On May 27, 2024, Plaintiff arrived at the water park and went directly to the slide. (Undisputed Fact 7.) Plaintiff had been at the park for no more than 15 minutes. (Undisputed Fact 8.) Plaintiff exited the slide and her knees automatically hit the ground. (Undisputed Fact 9.) Plaintiff went straight down and landed in the splash pool differently than she had on prior rides on the slide. (Undisputed Fact 11.) She does not know why she entered the pool differently that day. (Undisputed Fact 13.) Plaintiff had never landed in the splash pool in that manner before. (Undisputed Facts 10,